Received Nov 23 ans. 24

Consulate of the United States

Amoy June 30. 1867

The Hon. Secretary of State

Washington D.C.

Sir.

Referring to my Dispatches No 17. 19-21-22, relating to the wreck of the American Bark "Rover", I have the honor to hand you, under this Cover, Enclosure No 1, being a Dispatch received from the Taotai and General of the Island of Formosa, also my answer to the same, Enclosure No 2.

Copies of Enclosures No 1 & 2 have been forwarded by me to the U. S. Minister at Peking and to the Rear admiral commanding the U.S. asiatic Squadron in Shanghai.

I have the honor to be,

Sir,

with great respect,

Your obedient Servant

Chs. W. le Gendre

U.S. Consul

Received, Copy

Tamsui foo, 2d day, 5th Moon, 6th year

To the U.S. Consul at Amoy.

We Gen.l Liu and Taotai Ow, beg to inform you that on the 24th Day, 4th moon of this year, the Magistrate of Tow-Sam-Kien, Mr Whow, reported to us the following:

"The former Magistrate of Tow-Sam-Kien, Col. Liu,
"and myself, having received a communication from
"the English Consul, also a dispatch from the U.S. Cons-
"ul le Gendre, both relating to the wreck of the bark
"Rover" and the murder of the crew at Cam-Cap-Sa-piff
"any, also your order to send a force to the theatre
"of the tragedy, seize the guilty parties and turn them
"over to you for punishment, I Penkieng and Col. Liu
"and an escort of Soldiers, proceeded to Taotai, giving
"notice to Consul Carroll and the Commissioner of Cus-
"toms White. This has been communicated to you
"already. Subsequently we having matured our
"plans, Captain Pau-Whin-Whey, furnished me
"with guides, and Col. Liu collected a force of good
"seamen and experienced Soldiers, and we made
"dispositions to advance with intent of ascertain-
"ing what could possibly be accomplished. We
"also directed a military officer named Wang-Lee
"Whang, to make a map of the country, as we

have already advised you.

"Now captain Tang-chang-Whin reported
"to me (whow) and said that he had gone to the
"Kiang-Kiaw-Bay, where he commenced an#
"inquiry among the inhabitants, half castes, of
"that locality. There he learned that the place
"where the Rovers crew were killed, is some 12 or
"20 miles Southward and is entirely settled by Sa-
"vages whose language none of them (i.e. the
"inhabitants of the Kiang-Kiaw-bay), know how
"to speak. The water route is rendered thorou-
"ghly impracticable by rocks in the Seas as thick
"as the trees in a forest. The overland route is not
"less dangerous, it been infested by Savages who
"hide themselves in the cavities of the rocks, and
"in the grafs, from which they fire upon their ene-
"mies. It was with the utmost difficulty that we
"succeeded in hiring spies to gain this information.

"The Kiang-Kiaw-Bay is within the limits of
"our jurisdiction; but its inhabitants are very few &
"the country round is very thickly wooded. When
"the Government wants wood, a linguist is sent#
"there to buy it. But Kaw-a-Kaw-pit any is 15
"or 20 miles distant from Kiang-Kiaw-Bay and
"there are no roads communicating between
"the two points, only paths for wild animals and birds
"of prey; the whole country beeing thickly cove-
"red with grafs and trees, is very dangerous.#
"The Savages that live there hide themselves in
"caverns going in and coming out of them like
"rats, and bite them indiscriminately.

"We, Yin-Tang-chin-Chang and Pin-Kiep
"have examined the treaty: art. 11 & 13 provide
"that whenever within the jurisdiction of the#
"Emperor of China, any one shall molest ame-
"ricans, the military and civil authorities must,
"on hearing of the same, try to punish the author.
"But in this case the Americans were not mur-
"dered on chinese territory, or on chinese Seas,
"but in a region occupied by the Savages. Hence
"the treaty can not affect it at all. Was it in#
"our power to seize those men, we would gla-
"dly do so, and would not think of refusing, so
"that we might keep friendship with foreigners.
"But the Savage country does not come wi-
"thin the limits of our jurisdiction, and our#
"military force is not able to operate in it. Such
"are the difficulties encountered by us, which we
"must make known to you in all candour;
"begging you, at the same time, to make the

"necessary allowance and favor us with an "answer."

On the receipt of the foregoing, I determined to communicate it to you, having already sent you a former dispatch received on the same subject. Our impression is that our agents have furnished us with a true statement of the case, and we believe those Savages to be like wild animals with whom any one would disdain to contend. A government as great and generous as yours will always dispise such beings.

Respectfully submitted.

Signed etc etc

U.S. Consulate, Amoy, June 22 1867.

The foregoing is a true copy of the original on file at this office.

Chs. W. LeGendre

U.S. Consul

Received No. 72 Copy.

Consulate of the United States of America.

Amoy June 22d 1867.

To the General and Taotai of Formosa.

Sirs,

I have the honor to acknowledge the receipt of your dispatch of 2d day 5th moon 6th year (3d of June — 1867).

The sudden conclusion you have come to in the affair of the "Rover", and the reasons you give thereof disappoint me in the extreme and more than I could express.

You never seemed to doubt either in the course of our interview or in our written communications, that the "Rover" "had been wrecked on the Chinese seas, and her crew murdered on Chinese territory. If there was the shadow of uncertainty left in your mind on this point, why not have said so at once, or have settled the question by a glance over the maps, when Captain Febiger and myself called on you, on the 20th of april last asking you to lend your aid towards investigating this distressing affair. Then, and not now, was the proper time to present your objections, or decline as you do now, any interference in the affair. For then the monsoon was favorable to naval operations in the Southern Bay; then the hot weather had not set in. Then we had our forces near the spot; then many

of.

of the unfortunate victims who, by this time, have doubtless pe=
=rished through violence, exposure or Starvation, were, I doubt
not, living. The remains of those that had been murdered, since
rendered unthrowable by the action of time or scattered to
the winds, could have been recovered and sent to their
friends for Sepulture. This we could have carried out
through our own resources and on our own responsibi=
lity, had we only known of your real intentions, and #
we would have reserved our rights for indemnity to
be brought forward in case your inaction had been
found to have been due to a wrong understanding
of your duties to our Government, under the treaty
and the laws of Nations.

Instead of this, you prayed us to do nothing and #
Said that you would do everything. In fact you
wrote me " On receipt of information relative to the
"massacre of the Master and Crew of the Bark #
"Rover" by the Savages, prior to your arrival, we ha=
"=ve issued directions to the Civil and Military au=
"=thorities to adopt measures for the management
"of the affair; * * * * * * and if any exertion of zeal
"can do it, no endeavours will be Spared to bring the
"offenders to immediate punishment, in order that #
"terms of good fellowship and harmony may exist
"between China and the Foreign powers. We could

not

"not dare to trouble Captain Febiger and yourself for military and
"naval assistance in the matter, since in the event of any accident
"we would feel more than ever grieved. We have again direc=
"ted the civil and Military Authorities to dispatch troops and
"constabulary, to carry on operations. We would not request the
"presence of your man of war to assist in these operations." etc etc etc
(Letter of General Liw, Taotai Wu, and Prefect of Taiwanfoo to
General le Gendre, U.S. consul, dated Taiwanfoo — 15th day 3d
moon - 6. year; April 19th 1867).

On the following day you renewed the Same assurance
of your desire to comply with our just request; and the #
General only required a few days to perfect his plans, his past
experience of mountain warfare beeing limited; but he pro=
=mised to act promptly and Simply asked for liberty to #
Strike the blow alone. He Said to me: "If any force can
"bring these Savages to terms, the chinese Soldiers are ade=
"=quate to the task; but beeing alone responsible to my #
"Government for the Success of the expedition, it is but just
"that I Should conduct it with entire liberty of action,
"and I decline accepting any assistance on the part of
"foreign nations."

Under the circumstances, Captain Febiger and myself
determined to remain passive observers feeling that you
understood the extent of your obligations under the treaty &
that you had made up your mind to discharge them

with.

celerity and honor. Both Captain Febiger and myself fully realized that from that day we could not take any steps in advance of you, without virtually relieving you and your Government of all responsibility with the United-States, and interfering with the claim for indemnity which would be instituted for the families of such of the Rover's crew as were expected to be saved through your exclusive exertions, in case you would fail to fulfill your obligation in the manner it was expected that you would.

On the day previous to my leaving Taiwanfoo you reiterated your promises in the course of our # last interview; and as we were to embark we received the communication of a Dispatch addressed to you by the Prefect of Taiwanfoo, pressing you to loose no time in sending troops forward to the relief of the "Rovers" crew and for the punishment of the # murderers of those that had lost their lives by the hands of the Savages.

You can not claim that you then ignored the name of the locality where the "Rovers" had been wrecked, for you named it in your dispatch of the 3d moon 15th day 6th year, 19th April 1867, Red head Island. Neither did you ignore the Bay where the "Rovers" crew had been murdered for you inform me in the same dispatch that is is # named

named Ku-wa-Suh-Ti-Swan by the natives.

On the 28th day 3d moon, 6th year, 2d May 1867, you notified me that your officers were waiting for your orders, having their first columns redy to advance, and they intended to prove by their acts that the Chinese Government entertains the kindest feelings for the Eastern nations. But now their language is quite different. You communicate to me the # following Dispatch from them: Taiwanfoo, 2d day 5th # moon, 6th year, 3d June 1867. "We Tin-Tsun-Chew-Chang "and Pen-Nieh, having examined the Treaty, Art XI and "XIII provide that whenever within the jurisdiction of "the Emperor of China, either on Shore or at Sea, any "who shall molest Americans, shall be punished by the Ci- "-vil and military authorities, on their hearing of the same "to the best of their ability, but as in the Rovers case, the A- "-mericans were not murdered on Chinese territory, or on # "Chinese Seas, but on a region occupied by the Savages, "relief can not be asked for them under the treaty; were it in our "power to seize the murderers, we would gladly do so, So that the "Chinese might keep friendship with foreigners, but the Sa- "vage country does not come within the limits of our ju- "-risdiction etc, etc, etc."

One would have supposed that you would have at once blamed your subordinates, yet you write me under the same date: "on receipt of the foregoing, I determined to #

"communicate it to you having already sent to you a for=
"=mer dispatch received on the same subject; our impression
"is that our subordinates have furnished us with a true sta=
"=tement of the case, and we beleive those savages to be
"wild animals with whom any one would disdain to #
"contend. A Government as great and generous as yours
"will always despise such beengs" etc etc etc.

In answer I will remark that negociations have # now lasted longer than they should have done, and that they have to be brought to a close by a fair understan=
=ding on both parts of what I feel it is my duty to ask under the treaty and of what you hold to be at liberty to concede under your interpretation of the same.

In consequence I beg to reaffirm what I have said or written to you at former times: that the United-Sta=
=tes will in this case as in any other, insist upon a strict observance of the treaties, on the part of the Chi=
=nese and relative to this, I may remark that on # the 15th day, 3d moon, 6th year [19th april 1867], appea=
=ring to fully understand Captain Febiger and myself, you promised to afford prompt relief to the "Rovers" # crew and to punish the murderers of such of them that had lost their lives by the hands of the inhabitants of the # Southern portion of the Island of Formosa; that two months have elapsed since, and that nothing has been done on your part towards keeping this most sacred enga=
=gement, having only discovered at this late hour and thought your agents, that you were not expected under the treaty to carry out your promises, they having been made in ignorance of certain facts that you have # since ascertained.

The Government of the United-States can not accept such an issue; and in its name, I protest em=
=phatically against [pardon me the expression] this shifting way of settling this most important question, and its deplorable consequence; and I do now make all possible reserve for all claims for indemnity and reparation which may hereafter be brought # forward in consequence thereof by my Government against yours.

The question involved in the wreck of the "Rover" & the murder of her crew by the inhabitants of the Sou=
=thern end of Taiwan, a dependency of the Chinese Empire, does not only affect american interests, but also the interests of every one of the Western nations that are connected by trade with China, and whose ships ply between the Spanish, Dutch and English possessions, South, South-East and South-West from Formosa, the various parts of China on the coast # South of Amoy and those on the North of it. Those #

vefsels

vessels either following their natural or direct route or carried out of it by the winds, are apt to come to grief on or near the breakers where the Rover was last, and of necessity must seek refuge in the Bay south off Formosa Island. For if they go to the East Side of Taiwan, they find an abrupt coast where even ordinary embarkation would not be safe, and if they go further to the north on the Western coast, they must not stop until they reach Lee-chew-Bay which is at the least 45 miles distant. Are they always in a position to make this long run? The deposition of the last surviving survivor of the "Rover's" crew seems to show otherwise, the unfortunates in this case, having landed at the Southern Bay because they could go no further being exhausted by fatigue, thirst and hunger. So that mine Farmer out of ten, they must stop at the Southern Bay which seems to have been opened by the Almighty as a natural refuge against the uncertainty of the Elements. Hence humanity makes it a law to civilized nations to see that this part of Formosa is kept clear of any of these inhospitables hordes that infest it, and if your Government does not do it, on the ground that it has no jurisdiction therein or is inadequate to the task, the foreign powers will have to take the case in hand. The United States would hear with regret that the Eastern nations have come to such a conclusion, for they would disdain the acquisition of territory they would gain by it, and it would be the beginning of a policy of violence that might ultimately end by the dismemberment of the Chinese Empire, and its humiliation based on the incompetency of its authorities to command the respect of its own subjects, or to fulfill certain obligations imposed upon them by the laws of nations.

I can assure you that it is to the interest of the United States that you should be prosperous, united, powerful and at peace with foreign nations, and among your own people; and we have no ambitious design to accomplish in regard to you; no desire to acquire any of your territory, having already too large a one of our own; and the greater and more rich you become, the more mutually beneficial will be the trade between the two countries. Your prosperity will be for the good of the United States and whatever tends to impair it a loss.

Yet and with all this the United States form a great commercial nation and they are this above all. They desire the extension of trade all over the world, and would certainly not sacrifice their interests to a blind friendship for China or any other nation and if any foreign power, justified by the neglect or ill will of the

Chinese

Chinese, should undertake the control of the Southern part of the Island of Formosa, and clear it from the hordes that have interfered with our trade for # years past, we would not oppose it. And although we would not in all probability retain any portion of the territory acquired, we would see with Satisfaction any Step taken that would secure the interest that the Chinese Government would have declared themselves unable to protect.

The Southern end of Formosa Channel is a # most important commercial Thoroughfare and # must be kept open at all hazards.

Having given these assurances of our good wishes and furnished you with the outlines of our policy, I will now endeavor to show you that under the existing laws of nations That part of Taiwan settled by what you call the Savages, is one for the maintenance of order over which # foreign nations are justified in looking to the Government of China.

The Formosa Savages stand on the same footing with the Indians that yet inhabit a great portion of the United-States. What can with truth be said of one under the laws of nations, can equally be said of the other. I

For the sake of their own interests the United States have

have insisted with foreign powers that our Indians should hold their existence as tribes at our exclusive will. Even if you never expected to interfere with your Formosa natives further than to keep out the agents of the foreign powers who might # seduce them into foreign alliance, the result of which would be the absorption of the Island of Formosa by the foreign ally, you should, for your best interest, imitate us in that respect. For if you admit that such territory has never been explored, you admit that it could be seized by the first # power whose interest it would serve to take it, # and that power would acquire as indisputable a right to its possession as the Spanish had to the New-World, when they first discovered it, or as you yourselves had to the Island of Formosa, when you first planted your colonies on its # western shore.

So the view that the Western nations take of the natives tribes of Formosa is that they # should not be treated as independent by China nor regarded as owners of the soil they may respectively occupy; but that China has a right to that same soil because it can take possession at leisure.

In fact this doctrine seems to have been adopted by your Government, since the Chinese farmers on the western side of the Island, as fast as they find themselves crowded in their settlements, keep advancing towards the Eastern coast, sword in hand, driving the natives before them, and it is likely that they will continue to do so until they have absorbed the whole country from the Formosa channel to the Eastern shore. And in this they only confirm "de facto" the righteousness of the law I have quoted above, and in virtue of which superior races have by degree, since the # beginning of the world substituted their Civilization for that of inferior ones.

The Chinese divide and parcel out the land of the natives in Formosa, and grant it to their subjects as they need it, exactly as if it had been vacant and unoccupied land; they do more: anticipating the occupation of the natives territory by their subjects, they control, in some instances, by the most arbitrary rules, the trade of native products with the natives of the Western Shore. Camphor, one of the most important staples of the Island, is produced on the Territory occupied by the natives. No foreigner is allowed to export it freely, or to acquire it therein.

One

one individual enjoys the exclusive right to carry on the trafic for the benefit of the Chinese Government. # (letter of the Taotai of Formosa to the U.S. consul at Amoy, dated 15th day, 3d moon, 6 year, 19 april 67). Any one interfering with the rights of the monopolist is put to death.

So the Chinese Government have ever gone further with the natives of Formosa than the United States have gone with the Indians, and "de facto", in the most flagrant manner, have for the last two hundred years insisted upon having supreme power and dominion over the territory therein.

If such is the case, it appears to be too forceably and clearly established to admit of dispute that the Savages tribes of Formosa are subject to the Authority of China; and when the country occupied by the natives is not within the limit of the various Chinese Magistrates, China can # and should punish any offence committed therein, no matter the offender be a Chinese or a native, and it is # not the duty of the foreign Treaty powers to punish such offenders. For if the native territory is not Chinese in # population, it is Chinese in fact, the Chinese population of Taiwan having a sort of preemption claim on it, which they enforce every day when they consider it and advisable. Hence the last argument of your Honor's

letter

letter against misuniz yourself in the "Rover's case", on the ground that you have no jurisdiction over that part of Formosa, falls to the ground.

I could add to this many facts that would sustain an opinion expressed by me in my dispatch to your honor, dated 28 day, 4th moon 6th year (30th May 1867), that many of the tribes living on the Southern Coast of Formosa, alleged to be Savages, are only half cast and connected with the Chinese population of the Western Coast and of Swatow by trade or marriage; but it would uselessly add to this very long Dispatch and I shall come to a close.

Sincerely hoping that this communication will lend to reform your judgement of many points of vital importance both to China and the United States,

I have the honor to be,

Sir,

Your Obedient Ser.t

Ch. W. Le Gendre

United States Consul for Amoy

and Dependencies.

No 25

Consulate of the U. S. of America, Amoy China

June 30th 1867.

No 2

To the Hon.ble W. H. Seward

Sec.y of State

Washington D.C.

Sir.

I have the honor to hand you under this cover

Six enclosures, being

Enclosure No 1 / Register of Official letters Received

" 2 / do " do do Sent.

" 3 / Arrivals and Departures of ~~Vessels~~ Vessels.

" 4 / American Vessels.

" 4a / Navigation and Commerce

" 5 / Return of deceased American Citizens

" 6 / Return of Civil Suits

" 7 / Return of Criminal Suits

I have the honor to be, Sir

Your Obedient Servant